

LAW STICKER AI

Osmania University – LL.B. (3-YDC) | 4th Semester

INTERPRETATION OF STATUTES

UNIT II

Primary Rules of Interpretation & Law Commission Reports

Paper III | Target: 75+ Marks | All Three Parts Covered

TABLE OF CONTENTS

Section	Topic	Stars
Part A – Short Notes	1. Grammatical/Literal Rule	★★★★★★
	2. Golden Rule of Interpretation	★★★★★★
	3. Mischief Rule / Rule in Heydon's Case	★★★★★★
	4. Ut Res Magis Valeat Quam Pereat	★★★★★☆
	5. Noscitur a Sociis	★★★★★☆
	6. Eiusdem Generis	★★★★★★
	7. Expressio Unius Est Exclusio Alterius	★★★★☆☆
	8. 60th & 183rd Law Commission Reports	★★★★★☆
Part B – Essays	1. Mischief Rule — Critical Note	★★★★★★
	2. Golden Rule — Goldenness of the Golden Rule	★★★★★★
	3. Eiusdem Generis — Principle with Case Laws	★★★★★★
Part C – Problems	1. Public Smoking on Eve of Statute — Retrospective?	★★★★★★
	2. Flick Knife 'Offer' — Which Rule?	★★★★★☆
	3. Penal Statute — Two Interpretations, Which Prevails?	★★★★★★
Quick Revision Sheet	Cases, Mnemonics, Trap Qs	—

UNIT II — OVERVIEW

What IS in Unit II vs. What is NOT

IN This Unit (Unit II)	NOT In This Unit
Grammatical/Literal Rule	Penal & Taxing Statutes (Unit III)
Golden Rule of Interpretation	Beneficial/Harmonious Construction (Unit III)
Mischief Rule (Heydon's Case)	External & Internal Aids (Unit IV)
Ejusdem Generis / Noscitur a Sociis	Effect of Repeal / Amendments (Unit V)
60th & 183rd LCI Reports	General Clauses Act 1897 detail (Unit I)

Predicted Questions (Based on Past Papers 2018–2025)

Type	Predicted Question	Stars
Part A	Mischief Rule / Rule in Heydon's Case	★★★★★★
Part A	Golden Rule	★★★★★★
Part A	Ejusdem Generis	★★★★★★
Part A	Literal Rule / Grammatical Rule	★★★★★★
Part A	Noscitur a Sociis	★★★★★☆
Part B	Write a critical note on the Mischief Rule	★★★★★★
Part B	What is the Golden Rule? Examine the goldenness of the Golden Rule	★★★★★★
Part B	Explain the principle of Ejusdem Generis with case laws	★★★★★★
Part C	Public smoking on 31-3-XXXX at 11 PM — Retroactive penal law?	★★★★★★
Part C	Flick knife displayed in shop — offer or invitation to treat?	★★★★★☆
Part C	Penal statute capable of two interpretations — which prevails?	★★★★★★

Critical Numbers & Anchors

- Heydon's Case decided in: 1584 — the oldest rule of interpretation
- Golden Rule stated by: Lord Wensleydale in *Grey v. Pearson*, 1857
- Literal Rule stated by: Lord Tindal CJ in *Sussex Peerage Case*, 1844
- *Fisher v. Bell* (1961): Display of flick knife = Invitation to treat, NOT an offer
- *Smith v. Hughes* (1960): Prostitute on balcony = still a street offence (Mischief Rule)
- 60th LCI Report: 1974 | 183rd LCI Report: 2002
- 4 Questions of Heydon's Case — MEMORISE THESE (see Part A below)

PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. Each carries 6 marks. Write 1.5 to 2 pages per note.

1. Grammatical / Literal Rule of Interpretation ★★★★★

Definition

The Grammatical or Literal Rule of interpretation provides that the words of a statute must be given their ordinary, natural, and grammatical meaning — as they would be understood by an educated layman — without any addition, subtraction, or modification by the court. This is the primary and most fundamental rule of statutory construction.

Key Points

- The first duty of a court is to interpret the words as they stand — not to reconstruct what Parliament might have said.
- The rule is based on the principle of parliamentary supremacy — the legislature's words represent its will.
- No words should be added, subtracted, or modified; the statute speaks for itself.
- Where words are clear and unambiguous, no further inquiry into intent is needed.
- Limitation: Can produce absurd, unjust, or harsh results in some cases — leading to the Golden Rule as a corrective.
- The rule is sometimes called the 'Plain Meaning Rule' — plain meaning of plain words.

📌 **Example:** If a statute says 'no vehicle shall enter the park,' courts applying the literal rule would say a bicycle is a vehicle and is excluded, even if Parliament only meant motor vehicles.

⚖️ **Case:** *Sussex Peerage Case* (1844): Lord Tindal CJ — 'If the words of the statute are in themselves precise and unambiguous, then no more can be necessary than to expound those words in their natural and ordinary sense. The words themselves do alone in such cases best declare the intention of the lawgiver.'

⚖️ **Case:** *Whiteley v. Chappell* (1868): A statute made it an offence to impersonate 'any person entitled to vote.' The accused impersonated a dead man. The court applied the literal rule — a dead man is not 'entitled to vote' — and acquitted the accused, even though this defeated the purpose of the Act.

📌 **KEY RULE: Literal Rule = Words first, intent only if unclear. The court is NOT a legislator — it cannot rewrite a statute even if the result seems harsh.**

💡 **TIP:** Exam Trap: Literal Rule is not the same as strict construction. Strict construction applies to penal/taxing statutes (Unit III). Literal Rule applies to ALL statutes as the starting point. Also: 'Grammatical Rule' and 'Literal Rule' are synonyms — both terms are used in exams.

2. Golden Rule of Interpretation ★★★★★

Definition

The Golden Rule is a modification of the Literal Rule. It provides that when the literal interpretation of a statute leads to an absurdity, repugnance, inconsistency, or injustice, the court may deviate from the literal meaning — but only to the minimum extent necessary — to avoid such an outcome. The modification must remain as close to the ordinary meaning as possible.

Key Points

- The Golden Rule operates ONLY when the literal rule produces an absurd or repugnant result.
- The court modifies the meaning of words — it does NOT rewrite the statute.
- The modification must be the minimum necessary to avoid the absurdity.

- Two applications: (a) Narrow application — where words have more than one meaning, choose the one that avoids absurdity; (b) Wide application — where a single meaning is clearly absurd, modify the words.
- The Golden Rule is a compromise between the rigidity of the Literal Rule and the flexibility of the Mischief Rule.

📌 **Example:** If a statute says 'no person shall make a will while insane' — literal reading would make it impossible to interpret since an insane person cannot make a will anyway. The Golden Rule would read 'no person shall make a will WHILE insane' as validating wills made before insanity sets in.

⚖️ **Case:** Grey v. Pearson (1857): Lord Wensleydale — 'The grammatical and ordinary sense of the words is to be adhered to unless that would lead to some absurdity or repugnance with the rest of the instrument, in which case the grammatical and ordinary sense of the words may be modified so as to avoid that absurdity and inconsistency but no farther.'

⚖️ **Case:** R v. Allen (1872): Section 57 of the Offences Against the Person Act made it an offence to 'marry' during the lifetime of a spouse. Literally, a second marriage while married is void, so one cannot 'marry' again. The Golden Rule was applied — 'marry' was interpreted as 'go through the ceremony of marriage.'

📌 **KEY RULE:** Golden Rule Trigger = Absurdity + Minimum Deviation. Without absurdity, the literal rule governs. The Golden Rule never permits a wholesale rewrite — only the minimum necessary adjustment.

💡 **TIP:** Exam question 'Examine the goldenness of the Golden Rule' (Aug/Sep 2018 Q12) — critics say it is NOT truly golden because 'absurdity' is vague and gives judges too much discretion. Mention this critique in your essay.

3. Mischief Rule / Rule in Heydon's Case ★★★★★

Definition

The Mischief Rule, laid down in Heydon's Case (1584) by the Court of Exchequer, is the oldest rule of interpretation. It requires courts to identify the mischief — the problem or defect — that the statute was enacted to remedy, and then interpret the statute in a manner that suppresses the mischief and advances the remedy.

The Four Questions of Heydon's Case — MEMORISE

- Question 1: What was the common law BEFORE the making of the Act?
- Question 2: What was the MISCHIEF AND DEFECT for which the common law did not provide?
- Question 3: What REMEDY did Parliament resolve and appoint to cure the disease?
- Question 4: What is the TRUE REASON of the remedy?

Having answered these four questions, the court should interpret the Act so as to: suppress the mischief, advance the remedy, and suppress subtle inventions and evasions for continuance of the mischief.

Key Points

- The most purposive of the three primary rules — focuses on legislative PURPOSE, not text.
- Also called the 'purposive approach' or 'teleological interpretation.'
- Modern courts (especially the Supreme Court of India) frequently use this rule.
- It permits courts to look beyond the text to the object of the legislation.
- Criticism: Gives courts too much power; may lead to judicial legislation.

📌 **Example:** The Street Offences Act prohibited 'soliciting in a street.' Prostitutes began soliciting from balconies and windows. The literal rule would acquit them (they were not 'in' the street). The Mischief Rule suppresses the mischief — prostitution in public view — and convicts them.

⚖️ **Case:** *Smith v. Hughes* (1960): Prostitutes solicited from windows and balconies. Lord Parker CJ applied the Mischief Rule — the mischief was public annoyance, and soliciting from a balcony equally constituted that mischief. Conviction upheld.

⚖️ **Case:** *Gorris v. Scott* (1874): Animals washed overboard. The Act requiring pens was aimed at preventing disease — NOT loss of cargo. The mischief was disease, not drowning. Plaintiff could not recover.

⚖️ **Case:** *Heydon's Case* (1584): The Court of Exchequer laid down the four questions that courts must ask before interpreting a statute — the foundational case for purposive interpretation.

📌 **KEY RULE: HEYDON'S 4 QUESTIONS: (1) Common law before the Act, (2) Mischief not remedied, (3) Parliament's remedy, (4) True reason. Apply all four in your IRAC answers.**

💡 **TIP:** Mischief Rule appears in EVERY exam. Appeared in: Aug/Sep 2024 Q10, Nov/Dec 2022 Q9, Aug/Sep 2018 Q11, Jul/Aug 2025 Q4 (Part A). Learn *Smith v. Hughes* and *Gorris v. Scott* cold — both are regularly cited.

4. Ut Res Magis Valeat Quam Pereat ★★★★★

Definition

'Ut Res Magis Valeat Quam Pereat' is a Latin maxim meaning 'It is better for a thing to have effect than to be void' (or: 'It is better to validate than to nullify'). When a provision of a statute is capable of two constructions — one that gives it effect and one that renders it meaningless — the court must prefer the former.

Key Points

- A court must not interpret a statute in a way that renders any of its provisions otiose (useless) or nugatory (of no effect).
- Every word, clause, and section of a statute is presumed to have been placed there deliberately by Parliament for a purpose.
- The maxim is closely related to the principle of harmonious construction (Unit III).
- It is sometimes called the 'effective interpretation rule' or 'rule of effectiveness.'
- It cannot be used to validate a provision that is clearly unconstitutional or ultra vires.

📌 **Example:** If a statute provides that an application 'shall be filed within 30 days' — one reading makes this mandatory (failure = void); another makes it directory (failure = procedural irregularity). The court applies *Ut Res Magis* to give the provision meaningful effect — treating it as mandatory so the provision has teeth.

⚖️ **Case:** *Seaford Court Estates Ltd v. Asher* (1949): Lord Denning held that courts must give effect to every word of a statute — a construction that renders any provision meaningless must be rejected.

📌 **KEY RULE: Ut Res Magis = Prefer the construction that makes the law work. This maxim appeared as a DIRECT Part A question in the July/August 2025 paper — know the Latin, the English translation, and the Seaford case.**

💡 **TIP:** Quick memory trick: URP — 'Uphold Rather than Perish.' The examiner will be impressed if you write the maxim correctly in Latin, translate it, and cite a case.

5. Noscitur a Sociis ★★★★★

Definition

'Noscitur a Sociis' is a Latin maxim meaning 'a word is known by its associates' or 'it is known by the company it keeps.' When a word in a statute is ambiguous or has a wide range of meanings, its meaning is restricted or clarified by reference to the words and phrases with which it is associated in the same clause or provision.

Key Points

- A word draws meaning from the context in which it is placed — from neighbouring words.
- If a statute lists items together, the meaning of each item is coloured by the others in the list.
- It prevents an overly wide or overly narrow reading of any single word.
- It is an internal aid — it uses the statute's own language to resolve ambiguity.
- Distinguished from Ejusdem Generis: Noscitur a Sociis applies to a word in a list of specific things (no general word); Ejusdem Generis applies when there is a general word AFTER specific ones.

📌 **Example:** A statute provides exemption from sales tax on 'vegetables, fruits, and dairy products.' The word 'dairy products' might be ambiguous — does it include butter? Reading it alongside 'vegetables' and 'fruits' (fresh, unprocessed items) suggests it means unprocessed dairy (milk, curd), not butter.

⚖️ **Case:** Muir v. Keay (1875): A statute required licensing of 'houses kept open for public refreshment, resort, and entertainment.' The court held that 'entertainment' must be read alongside 'refreshment and resort' — it meant physical refreshment and comfort, not theatrical entertainment.

⚖️ **Case:** Inland Revenue Commissioners v. Frere (1965): The House of Lords applied Noscitur a Sociis to restrict the meaning of 'interest' by reference to the other words in the clause.

📌 **KEY RULE: Noscitur a Sociis = Guilt/Meaning by Association. A word takes colour from its neighbours. This appeared as a Part A question in Aug/Sep 2024 and Dec 2020.**

💡 **TIP:** Easy way to remember: 'Noscit' sounds like 'notices' — a word notices the company it keeps. Distinguish from Ejusdem Generis (which has a general word at the end) — this is a common exam trap.

6. Ejusdem Generis ★★★★★

Definition

'Ejusdem Generis' (Latin: 'of the same kind or class') is a rule of interpretation that provides: when a general word or phrase follows a list of specific words of the same class or genus, the general word must be interpreted as limited to things of the same genus as the specific words preceding it.

Key Points

- Structure: [Specific A, Specific B, Specific C] + General Word — the general word is limited to the genus of A, B, and C.
- Conditions for application: (1) The specific words must form a distinct genus/class; (2) A general word must follow; (3) The general word must not be expressly limited.
- If the specific words do NOT form a genus (they are too diverse), Ejusdem Generis does not apply — the general word retains its full breadth.
- The rule restricts the general word — it does not eliminate it.
- It prevents the general word from swallowing the specific items (making the list pointless).

📌 **Example:** A statute prohibits gambling in 'racecourses, gaming houses, and other places.' The specific places are all enclosed commercial gambling venues. 'Other places' must therefore mean other enclosed commercial gambling venues — it does NOT include a private house where friends play cards.

⚖️ **Case:** *Powell v. Kempton Park Racecourse* (1899): The Betting Act 1853 applied to 'a house, office, room or other place.' The House of Lords held that 'other place' was limited by *Ejusdem Generis* to indoor premises — a racecourse in the open air was NOT covered.

⚖️ **Case:** *Brownsea Haven Properties v. Poole Corporation* (1958): A statute listed 'lands, houses, mills, fisheries, and other hereditaments.' The court applied *Ejusdem Generis* to restrict 'other hereditaments' to the same kind as those listed.

⚖️ **Case:** *State of Bombay v. Hospital Mazdoor Sabha* (1960): The Supreme Court applied *Ejusdem Generis* while interpreting the Industrial Disputes Act — 'industry' had to be read in context with the specific types listed.

📌 **KEY RULE: Ejusdem Generis Trigger: Specific list + General word at the end. The GENERAL is limited to the GENUS of the SPECIFIC. No genus = Ejusdem Generis does NOT apply.**

💡 **TIP:** This appears in EVERY exam (Part A or Part B). The 2025 paper made it a full Part B essay (Q9). The *Powell v. Kempton* case is the go-to case — learn it cold. Mnemonic: 'EG — Same kind as the gang before it.'

7. Expressio Unius Est Exclusio Alterius ★★★★★

Definition

'Expressio Unius Est Exclusio Alterius' is a Latin maxim meaning 'the express mention of one thing implies the exclusion of others.' When a statute expressly includes or mentions certain items, persons, or matters, it impliedly excludes all others not mentioned.

Key Points

- The rule operates on the presumption that Parliament has deliberately chosen what to include — and has therefore deliberately omitted everything else.
- It is an aid to construction, NOT an absolute rule — it is applied only where it gives effect to the evident intention of the legislature.
- It must be applied with caution — Parliament sometimes omits items through oversight or because they are covered by other provisions.
- Cannot be used to exclude something where the context shows inclusion was intended.

📌 **Example:** If a Rent Control Act specifies that it applies to 'residential premises, commercial premises, and godowns' — the principle would exclude agricultural land from its scope, even though it is not mentioned.

⚖️ **Case:** *Colquhoun v. Brooks* (1889): Lord Esher stated that the rule may be useful but is always dangerous. It must be used to give effect to clear legislative intent — not mechanically.

📌 **KEY RULE: Expressio Unius = 'If it's not on the list, it's excluded.' But this is a REBUTTABLE presumption — context can override it.**

💡 **TIP:** This appeared as a Part A question in May/June 2018. Keep it short and give the Latin, translation, example, and case. Distinguish from *Ejusdem Generis* (which deals with a general word at the end of a list, not exclusion of unlisted items).

8. 60th and 183rd Law Commission Reports ★★★★★

Definition

The Law Commission of India periodically reviews existing legislation and recommends reforms. Two Law Commission Reports are specifically relevant to Interpretation of Statutes — the 60th Report (1974) and the 183rd Report (2002) — both focusing on the General Clauses Act, 1897.

60th Law Commission Report (1974)

- Titled: 'Report on the General Clauses Act, 1897.'
- Recommended a comprehensive overhaul of the GCA to modernise it post-Constitution (1950).
- Suggested adding definitions for new concepts that had emerged since 1897.
- Recommended aligning GCA provisions with the constitutional framework, particularly fundamental rights.
- Proposed clearer provisions on the effect of repeal to avoid judicial confusion.
- Highlighted that many GCA terms were archaic and needed to be updated for modern legislative drafting.

183rd Law Commission Report (2002)

- Titled: 'The General Clauses Act, 1897 — A Review.'
- Specifically recommended adding definitions for: 'computer', 'electronic record', 'digital signature', and other technology-related terms.
- Recommended the inclusion of gender-neutral language throughout the GCA.
- Proposed streamlining the provisions relating to repeal and amendment (Sections 6–8).
- Recommended extending GCA applicability to subordinate legislation made under Central Acts.
- Both reports remain largely unimplemented — the GCA continues in its 1897 form.

 **Example:** The 183rd Report recommended that 'writing' in Section 3 GCA should explicitly include electronic communication — because emails and digital contracts were not contemplated in 1897.

 **Case:** *Shreya Singhal v. Union of India* (2015): The Supreme Court interpreted 'information' under the IT Act in a manner consistent with the kind of technological definitions the 183rd LCI Report had advocated.

 **KEY RULE:** 60th Report = Modernise GCA post-Constitution. 183rd Report = Add technology definitions. BOTH remain unimplemented — a fact worth mentioning in essays.

 **TIP:** Remember: '60 = 1974, 183 = 2002.' If asked about Law Commission frameworks in Unit II, these two are your anchors. Exam Trap: Some students confuse these with other Law Commission Reports on different subjects.

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. Each carries 15 marks. Write 4–5 pages.

Essay 1: Critical Note on the Mischief Rule of Interpretation ★★★★★

(Appeared: Aug/Sep 2024 Q10, Nov/Dec 2022 Q9, Aug/Sep 2018 Q11)

I. Introduction

Of all the rules of statutory interpretation, the Mischief Rule is the oldest, the most flexible, and the most powerful. Originating in *Heydon's Case* (1584) — decided over four centuries ago — this rule empowers courts to look beyond the text of a statute and identify the purpose it was enacted to serve. Unlike the Literal Rule, which confines courts to the plain meaning of words, the Mischief Rule invites courts to consider the social, legal, and historical context in which a statute was enacted. It has been called 'the most intellectually honest' rule of interpretation because it openly acknowledges that courts are in the business of giving effect to legislative purpose — not just linguistic meaning.

II. Origin — *Heydon's Case* (1584)

Heydon's Case was decided by the Court of Exchequer in 1584. The case concerned the construction of the Dissolution of Monasteries Act, which aimed to prevent abbots from granting long leases of monastic lands that would defeat the Crown's policy of redistributing such lands. The court laid down four questions — now known as the 'four questions of *Heydon's Case*' — which a court must ask before interpreting a statute:

- Question 1: What was the common law before the making of the Act?
- Question 2: What was the mischief and defect for which the common law did not provide?
- Question 3: What remedy did Parliament resolve and appoint to cure the disease of the commonwealth?
- Question 4: What is the true reason of the remedy?

Having answered these questions, the court declared: the office of all the judges is to make such construction as shall suppress the mischief and advance the remedy; and to suppress subtle inventions and evasions for continuance of the mischief.

III. Application of the Mischief Rule — Key Cases

Smith v. Hughes (1960) — The Balcony Prostitution Case

The Street Offences Act 1959 made it an offence to solicit 'in a street or public place.' Several prostitutes were found soliciting from windows and balconies of private houses. Applying the Literal Rule, they were not 'in a street.' However, Lord Parker CJ applied the Mischief Rule:

- Mischief identified: Public nuisance caused by prostitutes annoying passersby.
- Remedy: Prohibiting solicitation in public view.
- Application: Whether a prostitute is in the street or displaying herself from a window that overlooks a street makes no difference — in both cases the mischief (public annoyance) is identical.
- Conclusion: Convictions upheld. The balcony was treated as equivalent to being in the street.

Gorris v. Scott (1874) — The Scope of Mischief

The Contagious Diseases (Animals) Act 1869 required that animals on board ships be kept in pens. The defendant failed to comply, and the plaintiff's sheep were washed overboard. The court held that the mischief the Act sought to remedy was the spread of contagious disease among animals — NOT the prevention of loss at sea. Since the plaintiff's loss was of a different type from the mischief the Act addressed, the defendant was not liable.

This case illustrates a critical limitation of the Mischief Rule — the mischief must be precisely identified. If the harm suffered is outside the mischief addressed, the Act cannot be invoked.

National Telephone Co. v. Postmaster General (1913)

The Telegraph Acts were enacted before the telephone was invented. The Mischief Rule was applied to include telephone within the scope of the Acts — since the mischief (unregulated electrical communication) was the same for both technologies. This demonstrates the rule's ability to adapt statutes to new circumstances.

IV. Modern Application — Purposive Interpretation

Modern courts in India and England have largely moved toward purposive interpretation — which is the Mischief Rule in its modern avatar. The Supreme Court of India has consistently applied it:

⚖️ **Case:** Workmen of Dimakuchi Tea Estate v. Management (1958): The Supreme Court applied the Mischief Rule to give the widest possible meaning to 'workman' under the Industrial Disputes Act, consistent with the Act's welfare purpose.

⚖️ **Case:** Vishaka v. State of Rajasthan (1997): The Supreme Court used a purposive approach to fill gaps in the law relating to sexual harassment at the workplace — reading existing statutes in light of their mischief (exploitation of women).

V. Critical Evaluation — Is the Mischief Rule Truly Beneficial?

Arguments in Favour

- It produces just and purposive results that align with legislative intent.
- It is flexible — it can be applied to new situations Parliament did not anticipate.
- It prevents technical loopholes from defeating the purpose of beneficial legislation.
- It is intellectually honest — courts openly acknowledge they are giving effect to purpose.

Arguments Against (Criticisms)

- It gives courts excessive discretion — different judges may identify different mischiefs.
- It may lead to judicial legislation — courts effectively rewrite statutes.
- It undermines legal certainty — parties cannot predict how a statute will be interpreted.
- Identifying the 'mischief' may itself be a matter of interpretation — the rule is circular.
- Modern statutes often have complex, multi-layered purposes — identifying a single mischief is an oversimplification.

VI. Mischief Rule vs. Other Rules — Comparative Chart

Feature	Literal Rule	Golden Rule	Mischief Rule
Focus	Text / Words	Text + Absurdity	Purpose / Intent
Flexibility	Rigid	Moderate	Most flexible
When applied	Always (primary)	Only if absurdity	When purpose is key
Risk	Unjust results	Judicial discretion	Judicial legislation
Origin	Common law	Grey v. Pearson 1857	Heydon's Case 1584

VII. Constitutional and International Basis

In India, the Mischief Rule finds support in the constitutional principle that courts must uphold the intent of the Constitution — including its welfare and rights-protection objectives. Article 39 (directive principles), Article 21 (right to life), and the constitutional mandate of social justice all push courts towards purposive — and therefore mischief-suppressing — interpretation. Internationally, the purposive approach is mandated in the interpretation of international treaties (Article 31 of the Vienna Convention on the Law of Treaties, 1969 — 'a treaty shall be interpreted in good faith in accordance with the ordinary meaning in light of its object and purpose').

VIII. Conclusion

The Mischief Rule remains the most intellectually sophisticated and practically significant rule of statutory interpretation. Its four-question framework is a rigorous analytical tool that forces courts to locate a statute in its historical and legal context before applying it. While it carries the risk of judicial overreach, that risk is managed by the requirement that courts identify mischief from the text and legislative history — not from their own policy preferences. In India's constitutional democracy, where social justice is a foundational value, the Mischief Rule serves as an indispensable bridge between the words of Parliament and the needs of the people.

Essay 2: The Golden Rule — What is it? Examine the 'Goldenness' of the Golden Rule ★★★★★

(Appeared: Aug/Sep 2018 Q12, Aug/Sep 2021 Q10, Jul/Aug 2025 Q11, May/Jun 2018 Q10)

I. Introduction

The Golden Rule of interpretation occupies a middle position in the hierarchy of rules of statutory construction. It was articulated by Lord Wensleydale in *Grey v. Pearson* (1857) as a modification of the Literal Rule, to be applied when the literal interpretation of a statute would produce an absurd or repugnant result. The name 'Golden Rule' evokes something precious and supreme — a standard to rely on when all else fails. But critics have questioned whether the rule truly deserves such an elevated title — or whether it gives courts an unstructured licence to substitute their own judgment for that of Parliament.

II. Statement of the Golden Rule

Lord Wensleydale in *Grey v. Pearson* (1857) stated:

"The grammatical and ordinary sense of the words is to be adhered to unless that would lead to some absurdity or repugnance with the rest of the instrument, in which case the grammatical and ordinary sense of the words may be modified so as to avoid that absurdity and inconsistency but no farther."

This formulation has two important qualifiers: (a) absurdity or repugnance must exist; and (b) modification is permitted only to the minimum extent necessary.

III. When Does the Golden Rule Apply?

- Primary condition: The literal meaning must produce an absurd, repugnant, or inconsistent result.
- Not every inconvenient or harsh result justifies the Golden Rule — only genuine absurdity.
- The court must first exhaust the literal approach before invoking the Golden Rule.

IV. Two Applications of the Golden Rule

1. Narrow Application

Where a word has two possible meanings — one that leads to absurdity and one that does not — the court selects the meaning that avoids absurdity.

📌 **Example:** In *Adler v. George* (1964), a statute made it an offence to obstruct security forces 'in the vicinity of a prohibited place.' The accused was actually inside the prohibited area. Literally, he was not 'in the vicinity' — he was inside it. The court applied the narrow Golden Rule to read 'in the vicinity of' as including 'in' the prohibited area.

2. Wide Application

Where the literal meaning is the only possible meaning but would produce a manifestly absurd result, the court may modify the words themselves to give a non-absurd meaning.

⚖️ **Case:** *R v. Allen* (1872): Section 57 of the OAPA 1861 made it an offence to 'marry' during the lifetime of a spouse. Literally — a second marriage while still married is void, so one cannot 'marry' again. The Golden Rule was applied — 'marry' was interpreted as 'go through the ceremony of marriage.' Conviction upheld.

V. Key Case Laws

⚖️ **Case:** Grey v. Pearson (1857): Lord Wensleydale stated the Golden Rule for the first time with precision. A will left property to persons 'in equal shares and if they die without leaving issue' — the literal reading would be contradictory. The rule was applied to resolve the contradiction.

⚖️ **Case:** Becke v. Smith (1836): Lord Parke (later Lord Wensleydale) stated an early version — 'It is a very useful rule, in the construction of a statute, to adhere to the ordinary meaning of the words used, and to the grammatical construction, unless that is at variance with the intention of the legislature, to be collected from the statute itself.'

⚖️ **Case:** Re Sigsworth (1935): A son murdered his mother. Under the Administration of Estates Act, he stood to inherit her estate. The literal rule would have allowed a murderer to benefit from his crime. The Golden Rule was applied — Parliament could not have intended such an absurd and immoral result. The son was denied inheritance.

VI. Examining the 'Goldenness' — Is the Rule Truly Golden?

Arguments Supporting 'Goldenness'

- It prevents the literal rule from producing results so absurd or repugnant as to bring the law into disrepute.
- It maintains fidelity to legislative intent — Parliament does not intend absurd results.
- It provides a principled mechanism for courts to depart from the text without wholesale rewriting.
- It has been successfully applied in landmark cases to achieve just outcomes (Re Sigsworth, R v. Allen).

Arguments Against 'Goldenness' — Criticisms

- 'Absurdity' is undefined — different judges may have different ideas of what constitutes absurdity. This gives courts unpredictable discretion.
- The rule does not specify HOW FAR the modification may go beyond the 'minimum necessary' — this is also a matter of subjective judgment.
- It is not truly a separate rule — it is simply the Literal Rule with a safety valve. Calling it 'golden' overstates its significance.
- Professor Cross criticised it as being too vague to be a rule at all — it is more of a principle of common sense than a legal rule.
- It can be used to justify almost any departure from the text, making it dangerously broad.

VII. Golden Rule in India

Indian courts have applied the Golden Rule extensively. The Supreme Court has consistently held that where the literal reading of a statute produces an absurd or manifestly unjust result, it will depart from the literal text — citing the Golden Rule.

⚖️ **Case:** CIT v. Hindustan Bulk Carriers (2003): The Supreme Court applied the Golden Rule to avoid a construction that would render a statutory provision meaningless.

⚖️ **Case:** K.P. Varghese v. ITO (1981): The Supreme Court held that the literal reading of Section 52 of the Income Tax Act would lead to absurd results and applied the Golden Rule to give it a purposive meaning.

VIII. Constitutional and International Basis

The Golden Rule finds its constitutional grounding in the principle that courts must uphold the rule of law — which includes preventing grotesquely unjust outcomes from arising under the law's own provisions. Internationally, the Golden Rule parallels the 'object and purpose' method of treaty interpretation under

Article 31 of the Vienna Convention on the Law of Treaties (1969).

IX. Conclusion

The Golden Rule is valuable precisely because it is limited. It does not authorise courts to rewrite statutes according to their own preferences — it authorises only the minimum modification necessary to avoid absurdity. Whether it deserves the title 'golden' is debatable — its critics are right that it lacks precision. But in practice, it has served as an essential safety valve in the common law system, preventing the Literal Rule from producing results that Parliament clearly never intended. In that sense — though imperfectly — the Golden Rule earns its name.

Essay 3: Ejusdem Generis — Principle with Case Laws ★★★★★

(Appeared: Jul/Aug 2025 Q9, Nov/Dec 2022 Q8 Part A, Aug/Sep 2018 Q1 Part A, Aug/Sep 2021 Q6 Part A)

I. Introduction

Legislative draftsmen frequently use general words after listing specific items — phrases like 'and other things,' 'and any other place,' or 'and similar matters.' Without a rule to control the scope of these general words, they would swallow the entire list and render the specific items unnecessary. The principle of Ejusdem Generis (Latin: 'of the same kind') addresses this problem by limiting the scope of general words to things of the same genus or class as the specific items that precede them. It is one of the most practically important and frequently applied rules of statutory construction.

II. Statement of the Rule

Ejusdem Generis: When general words follow a list of specific words of the same kind or class, the general words are restricted to things of the same genus as those specific words.

III. Conditions for Application

- Condition 1 — Specific words form a genus: The specific words listed must belong to a recognisable, distinct class or category. If the specific words are too diverse and do not constitute a genus, the rule does not apply.
- Condition 2 — General word follows specific words: The general expression ('and other,' 'or any other') must come AFTER the specific words.
- Condition 3 — The general word is not expressly limited: If the statute itself limits or expands the general word, the Ejusdem Generis rule yields to that express intention.
- Condition 4 — Context does not exclude the rule: If context shows Parliament intended the general word to have its full meaning, the rule is displaced.

IV. Application Through Key Cases

Powell v. Kempton Park Racecourse (1899) — THE LEADING CASE

The Betting Act 1853 prohibited the keeping of a 'house, office, room or other place' for betting. The defendant operated a betting ring in the open air at a racecourse. The question was whether the open-air racecourse fell within 'other place.'

- The specific words: 'house, office, room' — all are enclosed indoor premises.
- The genus: enclosed premises used for betting.
- Application of Ejusdem Generis: 'Other place' must be limited to the same genus — enclosed indoor premises. An open-air racecourse is not of the same genus.
- Result: The defendant was acquitted.

Allen v. Emerson (1944)

A statute applying to 'theatres and other places of amusement.' The question was whether a fun fair was covered. The court held that 'other places of amusement' was limited by Ejusdem Generis to permanent indoor places of commercial entertainment — a fun fair (temporary, outdoor) was excluded.

State of Bombay v. Hospital Mazdoor Sabha (1960)

The Supreme Court of India applied Ejusdem Generis to interpret 'industry' under the Industrial Disputes Act. The court held that the general words in the definition of 'industry' must be read in light of the specific examples given.

Brownsea Haven Properties v. Poole Corporation (1958)

A statute listed 'lands, houses, mills, fisheries, and other hereditaments.' The general words 'other hereditaments' were restricted by Ejusdem Generis to tangible property similar in nature to those listed — not abstract rights.

V. When Ejusdem Generis Does NOT Apply

- If the specific words do not form a recognisable genus (e.g., 'cats, dogs, and other things' — too broad a genus — 'things' retains full meaning).
- If only one specific word precedes the general word — one item cannot form a genus.
- If context or the statute itself shows Parliament intended the general word to be unlimited.
- If the list is intended to be exhaustive or inclusive and the general word is a residuary clause.

VI. Ejusdem Generis vs. Noscitur a Sociis — Comparison

Feature	Ejusdem Generis	Noscitur a Sociis
General word	REQUIRED (at end of list)	Not required
Specific words	Must form a genus/class	Associate words — any
Restricts	The general word only	Any ambiguous word
Leading Case	Powell v. Kempton (1899)	Muir v. Keay (1875)
Nature	Genus-limiting rule	Context-colouring rule

VII. Constitutional and International Basis

Ejusdem Generis is grounded in the principle of legislative economy and coherence — Parliament does not use words without meaning. It is applied by Indian courts consistently and reflects the constitutional expectation that statutes be given their intended scope — neither too broad (which would violate the principle of legality) nor too narrow (which would defeat purpose). International trade and tax treaties also apply Ejusdem Generis in interpreting schedules of goods and services.

VIII. Conclusion

Ejusdem Generis is one of the most elegant and logically compelling rules of statutory interpretation. It respects Parliament's word choice, prevents general words from overwhelming specific ones, and ensures that statutes are applied in a principled, consistent manner. Its application requires careful identification of the genus formed by the specific words — a task that demands both analytical precision and contextual sensitivity. When correctly applied, it produces just, predictable, and purposive results that honour the legislative intent while maintaining the integrity of the statutory text.

PART C — PROBLEM QUESTIONS (10 Marks Each — IRAC Method)

Answer any TWO. Each carries 10 marks. Strict IRAC: Issue → Rule → Application → Conclusion.

Problem 1: Public Smoking on the Eve of the Statute ★★★★★

Question: Under a Law prohibiting public smoking which came into force on 1-4-2020, X was prosecuted for public smoking on 31-3-2020 at 11 PM. The validity of the prosecution was challenged. Decide. (Aug/Sep 2024 Q14, Aug/Sep 2018 Q15 [same problem with 1-4-2015])

ISSUE

Whether a person (X) can be prosecuted for public smoking on 31-3-2020 at 11 PM under a law that came into force on 1-4-2020 — i.e., the following day?

The core legal question is: Can a penal statute be applied retrospectively to an act committed BEFORE it came into force?

RULE

- Fundamental Principle — Presumption Against Retrospective Penal Legislation: A statute creating criminal offences is presumed to operate prospectively — it applies only to acts committed AFTER it comes into force. This is a cardinal principle of criminal law.
- Article 20(1) of the Constitution of India: 'No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence.'
- This embodies the maxim: 'Nullum crimen sine lege, nulla poena sine lege' — 'No crime without law, no punishment without law.'
- The General Clauses Act, 1897, Section 3 — 'commencement': When an Act comes into force on a particular date, it applies only from that date forward — not to acts committed before.
- Strict Construction of Penal Statutes: Any ambiguity in a penal statute must be resolved in favour of the accused (to be fully covered in Unit III).

APPLICATION

The facts are clear: X smoked in public on 31-3-2020 at 11 PM. The law came into force on 1-4-2020. Therefore, at the time X committed the act, there was NO law prohibiting public smoking in force.

Article 20(1) of the Constitution provides an absolute bar on retrospective criminal liability. The act of smoking on 31-3-2020 was perfectly legal when it was committed. To prosecute X for this act under a law that came into force on 1-4-2020 would be to convict him of an act that was not an offence at the time of commission — which is explicitly prohibited by the Constitution.

The timing (11 PM on 31-3-2020) is significant — even though it is only one hour before the law came into force, the constitutional protection applies absolutely. There is no concept of 'almost an offence' in criminal law.

🔑 **Case:** Kedar Nath v. State of West Bengal (1953): The Supreme Court held that Article 20(1) is an absolute constitutional bar on ex post facto criminal laws. A person cannot be convicted for an act that was not an offence when it was committed.

🔑 **Case:** Rao Shiv Bahadur Singh v. State of Vindhya Pradesh (1953): The Supreme Court reaffirmed that the constitutional guarantee under Article 20(1) protects individuals from retrospective penal legislation.

CONCLUSION

NO — The prosecution of X is INVALID and must fail. The act of public smoking on 31-3-2020 at 11 PM was committed before the law came into force on 1-4-2020. Article 20(1) of the Constitution of India provides an absolute bar against ex post facto criminal prosecution. X cannot be convicted for an act that was lawful when he committed it. The challenge to the prosecution SUCCEEDS.

🟡 **KEY POINT:** Three anchors for this answer: (1) Article 20(1) Constitution — absolute bar; (2) Maxim 'Nullum crimen sine lege'; (3) Presumption against retrospective penal statutes. Mention all three.

Problem 2: Flick Knife Display — Offer or Invitation to Treat? ★★★★★

Question: 'A' displayed a flick knife with a price tag in his shop. A statute made it a criminal offence to 'offer' such flick knives for sale. His conviction was quashed as goods on display in shops are not 'offers' in the technical sense but an invitation to treat. Discuss under which rule the court based its ruling. (Jul/Aug 2025 Q16)

ISSUE

Whether the display of a flick knife with a price tag in a shop constitutes an 'offer for sale' within the meaning of a penal statute that criminalises the 'offering' of flick knives for sale.

The underlying rule question: Which rule of interpretation did the court apply to acquit A?

RULE

- Literal / Grammatical Rule of Interpretation: Words in a statute must be given their ordinary, natural, and technical meaning. Where a word has a settled legal meaning, that meaning must be applied.
- Contract Law — Technical Meaning of 'Offer': In contract law, a display of goods with a price tag in a shop is NOT an offer — it is an 'invitation to treat' (invitatio ad offerendum). The customer makes the offer by taking the goods to the counter; the shopkeeper accepts (or refuses) at the point of sale.
- Strict Construction of Penal Statutes: A penal statute must be strictly construed. Where the statutory word ('offer') has a settled legal meaning (offer = a definite proposal capable of immediate acceptance), that meaning governs. Any doubt is resolved in favour of the accused.
- Expressio Unius: Parliament used the word 'offer' — not 'expose for sale' or 'display.' Parliament's choice of the word 'offer' (with its technical contract law meaning) must be respected.

APPLICATION

The statute prohibited 'offering' flick knives for sale. In the technical language of contract law — which courts apply when interpreting penal statutes strictly — an 'offer' is a definite proposal that can be accepted to form a binding contract. A display of goods in a shop with a price tag is NOT an offer in this sense — it is an invitation to treat.

Applying the Literal Rule: the word 'offer' must be given its plain legal meaning — not loosely interpreted as 'expose' or 'display.' Parliament chose the word 'offer' and the court cannot substitute 'display' for it.

Applying the Strict Construction of Penal Statutes: since A's act (displaying the knife) does not fall within the technical meaning of 'offer,' A has not committed the offence. Any ambiguity is resolved in the accused's favour.

🔪 **Case:** Fisher v. Bell (1961): LORD PARKER CJ held that the display of a flick knife with a price tag in a shop window was NOT an 'offer for sale' — it was an invitation to treat. The Restrictions on Offensive Weapons Act 1959 used the word 'offer' — and the court applied the Literal Rule to give it its established contract law meaning.

CONCLUSION

The court applied the LITERAL RULE of interpretation. The word 'offer' in the penal statute was given its established legal meaning — an offer in the contractual sense, which requires a definite proposal capable of immediate acceptance. A display of goods in a shop is merely an invitation to treat, not an offer. A's conviction was correctly quashed.

The lesson: Parliament must use the word 'expose for sale' or 'display for sale' if it wishes to criminalise the mere display of prohibited goods. Using the technical legal term 'offer' produces the literal-rule outcome that favoured the accused.

🟡 **KEY POINT:** This problem tests the Literal Rule + Fisher v. Bell (1961). Always connect it to the contract law distinction between Offer and Invitation to Treat. The court REFUSED to use the Mischief Rule (which would have convicted A) and applied the Literal Rule instead.

Problem 3: Two Interpretations of Penal Statute — Which Prevails?



Question: A penal provision is capable of being given two interpretations. One interpretation leads to conviction of the accused, whereas the other interpretation leads to acquittal. Which interpretation has to be preferred and why? (Aug/Sep 2024 Q16, Aug/Sep 2021 Q14, Dec 2020 Q13, Jul/Aug 2019 Q13)

This question appears in ALMOST EVERY EXAM PAPER. Master this answer.

ISSUE

When a penal statute is susceptible to two constructions — one producing conviction and the other producing acquittal — which construction must the court prefer?

RULE

- Golden Rule — Prefer the Construction that Avoids Absurdity: Where two constructions are possible, prefer the one that is more consistent with the justice and purpose of the statute.
- Strict Construction of Penal Statutes: Penal statutes must be construed strictly — in cases of ambiguity, the interpretation MOST FAVOURABLE TO THE ACCUSED must be adopted.
- Benefit of Doubt to the Accused: In criminal law, the accused is innocent until proven guilty beyond reasonable doubt. Where the law itself is doubtful as to whether conduct is criminal, that doubt must benefit the accused.
- Maxim: 'In pari delicto potior est conditio defendentis' — In equal wrong, the position of the defendant is stronger.
- Constitutional Basis: Article 20(1) — no person shall be convicted except for violation of a law in force. Article 21 — right to personal liberty. Both support a strict, narrow reading of penal provisions.
- Tolaram Relumal v. State of Bombay (1954): SC — 'It is a well-settled rule of construction that if the words of a penal statute are capable of two constructions, the one which is more favourable to the person charged should be preferred.'

APPLICATION

Where a penal provision admits of two interpretations, the court is not free to choose arbitrarily between them. The rule is clear and unambiguous: the interpretation that leads to acquittal must be preferred over the one that leads to conviction, for the following reasons:

- Reason 1 — Parliamentary Precision: Parliament, when it intends to create an offence, uses precise

and clear language. If the language is ambiguous, it signals that Parliament may not have intended that act to be criminal.

- Reason 2 — Personal Liberty: Criminal conviction involves the most serious consequences — imprisonment, penalty, social stigma. Courts must be certain before depriving a person of liberty. Ambiguous statutes do not provide that certainty.
- Reason 3 — Penal Statutes Must Be Strictly Construed: Any ambiguity in a penal statute is resolved in favour of the accused — this is not mere sympathy; it is a rule of construction backed by centuries of common law and constitutional mandate.
- Reason 4 — No Conviction by Implication: The court cannot extend the scope of a penal provision by implication or analogy. If the accused's act does not clearly fall within the penal provision, he cannot be convicted.

CONCLUSION

The interpretation FAVOURING ACQUITTAL must be preferred. The accused is entitled to the benefit of any reasonable doubt — not only as to facts, but also as to the law itself. Where a penal statute is ambiguous and both a wider (conviction) and a narrower (acquittal) interpretation are available, the court MUST adopt the narrower interpretation. This is a principle of constitutional importance, grounded in Articles 20 and 21 of the Constitution, and repeatedly affirmed by the Supreme Court.

KEY POINT: This question appears in EVERY exam paper. Master this structure: (1) State the rule — strict construction, benefit of doubt; (2) Give constitutional basis — Articles 20(1) and 21; (3) Cite Tolaram Relumal; (4) State the conclusion clearly. 10/10 marks available with this answer.

QUICK REVISION SHEET — UNIT II

Top Case Laws — One-Liners

Case / Rule / Maxim	One-Line Summary
Sussex Peerage Case (1844)	Literal Rule — plain meaning governs unless absurd
Grey v. Pearson (1857)	Golden Rule — avoid absurdity; Lord Wensleydale
Heydon's Case (1584)	Mischief Rule — 4 questions; oldest rule of interpretation
Gorris v. Scott (1874)	Mischief Rule — statute for disease, not lost cargo
Smith v. Hughes (1960)	Mischief Rule — soliciting from balcony = street offence
Fisher v. Bell (1961)	Literal Rule — display not an 'offer'; invitation to treat
National Telephone v. PMG (1913)	Telegraph includes telephone — purposive/mischief rule
Tolaram Relumal (1954)	Penal statute — strict construction, favour accused
Powell v. Kempton (1899)	Ejusdem Generis — 'other place' limited to indoor venues
Amalgamated Society (1906)	Noscitur a Sociis — words known by companions

Three Primary Rules — At a Glance

Feature	Literal Rule	Golden Rule	Mischief Rule
Focus	Words / Text	Text + Absurdity	Purpose / Object
Trigger	Always (primary)	Absurdity found	Mischief identified
Flexibility	Rigid	Moderate	Maximum
Risk	Unjust results	Judicial discretion	Judicial legislation
Key Case	Sussex Peerage 1844	Grey v. Pearson 1857	Heydon's Case 1584
Modern name	Plain Meaning Rule	Absurdity Rule	Purposive Approach

Memory Mnemonics

💡 **Three Rules:** 'LGM' — Literal, Golden, Mischief. In order of flexibility: Literal (rigid) → Golden (moderate) → Mischief (most flexible).

💡 **Heydon's 4 Qs:** 'CMRT' — Common law before, Mischief not remedied, Remedy chosen, True reason.

💡 **Ejusdem Generis:** 'Same Gang Rule' — the general word joins the gang of specific words; it cannot roam free.

💡 **Golden Rule trigger:** 'A + M' — Absurdity + Minimum deviation only.

💡 **Penal statute ambiguity:** 'Doubt = Acquit' — always.

Trap Questions — Watch Out!

- 'Golden Rule = most important rule?' — NO. Literal Rule is PRIMARY. Golden Rule is secondary (applied only when Literal produces absurdity).

- 'Mischief Rule = purposive interpretation?' — YES, they are the same thing in modern usage.
- 'Fisher v. Bell = Mischief Rule?' — NO. Fisher v. Bell is the LITERAL RULE. Parliament's word 'offer' was given its plain legal meaning. The Mischief Rule would have convicted.
- 'Ejusdem Generis applies when there is only one specific word?' — NO. You need at least two specific words to establish a genus.
- 'Noscitur a Sociis = Ejusdem Generis?' — NO. Noscitur a Sociis colours any ambiguous word by its associates. Ejusdem Generis specifically restricts a general word at the END of a specific list.
- 'Two interpretations — always acquit?' — Only in PENAL statutes. In civil/beneficial statutes, the interpretation that best serves the statute's purpose prevails.